

“All the News
That’s Fit to Print”

The New York Times

THE WEATHER
Today, a morning shower and then breezy, some sunshine at times, not as chilly, high 49. **Tonight**, partly cloudy, low 38. **Tomorrow**, sunshine, high 49. Weather map, Page B10.

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Prices in Canada may be higher

\$4.00



The burial of a relative in Venezuela who was killed during the U.S. operation that seized the country’s president, Nicolás Maduro.

More Deaths In N.Y. Prisons Lack Scrutiny

By JAN RANSOM

When an inmate named Ladale Kennedy stopped breathing one night in a New York State prison cell, no one paid it much mind. No one opened a broad inquiry into the death of Mr. Kennedy, the 1,055th to be recorded in the prison system since 2014. The local medical examiner classified the incident, in July 2022, as something of an official mystery: cause and manner “undetermined.”

In fact, just before he died, Mr. Kennedy, 41 and mentally ill, had been pepper sprayed by guards, beaten, handcuffed, held face-first under running water and fitted with a “spit hood” — a mesh restraint that is sometimes used to prevent inmates from biting or spitting on officers.

All because he had failed to return some food trays and cups that had been handed to him in his cell.

He had said, “I’m sorry” at least eight times as they pulled him from his cell, video shows. He had told the officers he could not breathe at least 20 times during the entire encounter.

Over the past year, the prison system that held Mr. Kennedy has come under enormous scrutiny. Twenty guards were charged in the fatal beatings of two inmates, Robert L. Brooks and Messiah Nantwi. Lawmakers proposed a sweeping measure to strengthen prison oversight, and the governor signed it into law.

But Mr. Kennedy’s case, which passed by largely unnoticed, is a reminder that other men have died after beatings like Mr. Brooks and Mr. Nantwi did — and that the public still has not received a full accounting of those deaths.

The New York Times, after conducting dozens of interviews and reviewing thousands of pages of medical records, court filings and inmate death records, identified three other cases of inmates who died after beatings in the past three years, including Mr. Kennedy.

These new cases bear similarities to the high-profile deaths of Mr. Brooks and Mr. Nantwi. But where those cases stirred outrage, these have gone almost completely unnoticed.

Mr. Kennedy died at Upstate Correctional Facility.

Another inmate, Clement Lowe,

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Trump Intensifies His Assault on Facts of Jan. 6

By LUKE BROADWATER and DYLAN FREEDMAN

WASHINGTON — Over the last year, President Trump has engaged in a steady campaign to rewrite the history of Jan. 6, 2021, attack on the Capitol, when his supporters, believing lies of a rigged election, smashed windows and doors and assaulted law enforcement officers.

His revisionist history is taking on new significance ahead of this year’s midterm elections — and could carry more weight if Republicans lose control of Congress, which the president has said he believes may happen.

On Tuesday, the fifth anniversary of the Jan. 6 attack, Mr. Trump

Warns Midterm Losses Would Be Followed by Impeachment

was again seeding doubt about the integrity of American elections. “Our elections are crooked as hell,” Mr. Trump told congressional Republicans.

Offering a glimpse into his concerns about an election loss in the midterms, Mr. Trump said Republicans needed to retain control of the House because he expected to face a third impeachment trial if Democrats won. He said he would not call for this year’s election to

be canceled because critics would accuse him of being a dictator. “They’ll find a reason to impeach me,” Mr. Trump said. “I’ll get impeached.”

Also on Tuesday, the Trump administration created a new page on the White House website trying to rewrite the history of the riot, criticizing congressional Democrats and former Vice President Mike Pence for standing up to falsehoods about the 2020 election and allowing it to be certified. Mr. Pence, the webpage claimed, was guilty of “cowardice” for refusing to subvert the will of the voters to keep Mr. Trump in power on Jan. 6, 2021.

It was the latest turn in a year in

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A refinery near Wuxi, China, is the sole producer of a rare-earth metal in artificial intelligence chips.

China’s Rare-Earths Dominance Is No Accident

By KEITH BRADSHER

WUXI, China — The origin of China’s dominance of rare earths can be traced to an iron ore mine near Baotou in the country’s north, 50 miles from the Mongolian border.

It was April 1964 and Chinese geologists had discovered that the mine also held the world’s largest deposit of rare earths, a set of 17 metals that have become essential ingredients for today’s global economy. Deng Xiaoping, then a high-ranking Chinese Communist Party official, visited the remote

POWER MOVES *Envisioning a Resource’s Potential*

desert mine, owned by a military steel maker, to inspect the massive cache.

“We need to develop steel, and we also need to develop rare earths,” declared Mr. Deng, who over a decade later would emerge as China’s top leader.

Rare-earth metals and the magnets made from them are widely used in a long list of civilian and military applications, from cars to fighter jets. China’s position as the

leading supplier has given it enormous leverage over manufacturing and leadership in clean-energy technologies like electric cars and wind turbines. Companies all over the world depend on Chinese exports of those magnets.

China’s centrality in rare earths didn’t happen by accident. It is the result of decades of planning and domestic and overseas investment, often directed from the highest levels of the party and the Chinese government.

In the early 1970s, the People’s Liberation Army began a little-known research program to de-

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NEWS ANALYSIS

Trump Gives U.S. Foes An Opening to Pounce

A Basis for Brute Force in Their Spheres

By ANTON TROIANOVSKI

WASHINGTON — After attacking Venezuela and seizing its head of state, President Trump said on Saturday that the country had been “hosting foreign adversaries” and asserted that “American dominance in the Western Hemisphere will never be questioned again.”

His remarks appeared to be a broadside against Russia and China, which both built close ties to Nicolás Maduro, the captured Venezuelan leader. But in fact, there was also plenty in Mr. Trump’s words and deeds that Beijing and Moscow could get behind.

Mr. Trump’s stunning assault on Venezuela has ushered in new uncertainty around the globe, with allies and adversaries alike scrambling to reckon with a superpower ready to use force in the service of a transactional, might-makes-right foreign policy.

For the two countries long seen as America’s chief adversaries, Russia and China, that uncertainty is tinged with opportunity, foreign policy analysts said.

“If we have the right to be

aggressive in our own backyard,” said Fiona Hill, a Russia expert at the Brookings Institution, “why can’t they?”

Ms. Hill was the senior director for European and Russian affairs at the White House during part of Mr. Trump’s first term. In the spring of 2019, she told a congressional hearing later that year, Russia quietly signaled it was ready to cut loose its ally Mr. Maduro in exchange for the United States’ stepping back from Ukraine.

“You want us out of your backyard,” the informal Russian message went, in Ms. Hill’s telling. “We, you know, we have our own version of this. You’re in our backyard in Ukraine.”

Ms. Hill said she went to Moscow at the time to reject the idea. Russia never confirmed Ms. Hill’s account, but its RIA state news agency reported in April 2019 that her meetings in Moscow “revealed serious, deep contradictions and significant differences” regarding Venezuela.

Now, Russia could well have

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LITTLE FAITH President Trump soured on Venezuela’s opposition leader and Nobel laureate long before the capture of Nicolás Maduro. **PAGE A7**

MIXED FEELINGS While many Venezuelans in New York City celebrated the capture of Nicolás Maduro, others expressed anxiety. **PAGE A13**

As Noriega Did, Maduro Claims Status of P.O.W.

By CAROL ROSENBERG

MIAMI — Inside a New York courthouse, Nicolás Maduro declared himself a prisoner of war, a status that the last Latin American leader seized by U.S. forces, Gen. Manuel Antonio Noriega, had also claimed.

Mr. Maduro’s declaration on Monday came during his first federal court appearance since he and his wife were captured in a U.S. military operation early Saturday morning in Venezuela and transferred to the United States.

It is not yet known what defense strategy Mr. Maduro might pursue. But the assertion resembled General Noriega’s approach, which allowed him to wear a military uniform at his trial and to have special accommodations in prison after his conviction on drug trafficking, money laundering and racketeering charges.

General Noriega was captured in January 1990 and convicted in federal court in Miami in April 1992 after a seven-month trial. He served his time at a federal prison in South Florida that had trimmed lawns and palm trees.

His specially-built lockup was more like a tiny house. The 250-square-foot cinder-block building had a bedroom, an office and an exercise bicycle. Jon May, one of his defense lawyers, recalled in an interview.

Prison guards nicknamed it “the presidential suite.”

General Noriega had no contact with the other federal prisoners. But Mr. May said the general had access to an open courtyard, which he could step into any time of day, and, at his own expense, a telephone. From it, Mr. May said, General Noriega could make and receive calls, although incoming calls had to be arranged with the prison.

Defense lawyers had sought the prisoner-of-war designation for General Noriega before his trial in an effort to have the case dis-

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Secretary of State Marco Rubio will oversee Venezuela.

In Next Phase, Rubio Is Facing A Tougher Task

By EDWARD WONG and JULIAN E. BARNES

WASHINGTON — It was a warm afternoon in the Oval Office, and Secretary of State Marco Rubio was helping President Trump steer the administration’s discussions about Venezuela to a concrete military phase.

The two men sat with Defense Secretary Pete Hegseth and Gen. Dan Caine, the chairman of the Joint Chiefs of Staff, to consider how to go beyond conducting lethal boat strikes in waters near Venezuela to moving harder against Nicolás Maduro, the country’s leader.

Diplomacy was over, Mr. Trump said. In front of the other men, he called Richard Grenell, a special envoy who had been meeting throughout the year with Mr. Maduro. The president praised Mr. Grenell’s efforts but said it was time for military action, according to an official with knowledge of the meeting.

That meeting on Oct. 2 was critical for Mr. Rubio in pushing the administration to reach his years-long goal of ousting Mr. Maduro. The offensive culminated early Saturday, when Mr. Rubio, the president and the Pentagon officials, ensconced in a makeshift situation room in the Trump man-

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Idaho Killer’s Sibling Opens Up

The sister of Bryan Kohberger, who murdered four college students, reveals the family’s pain and confusion. **PAGE A11**

Cheering Congestion Pricing

The governor and New York City’s new mayor laud the year-old tolling program in Manhattan as a success. **PAGE A16**

INTERNATIONAL A4-10

Syria and Israel Revive Talks

The meetings are the latest bid to reduce border tensions. A deal would help both governments curry favor with the Trump administration. **PAGE A10**

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New Dawn for Nuclear Power?

Companies are creating smaller reactors with the Trump administration’s backing. Success isn’t assured. **PAGE B1**

Nvidia Details New A.I. Chips

At the CES conference, the company’s chief executive said the more powerful chips would ship later this year. **PAGE B1**



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Moves From the Street

Dancers from Detroit, Philadelphia and Chicago demonstrated the fundamentals of their styles. **PAGE C1**

Communing With Ghosts

A book by Lola Lafon, arising out of a night in Anne Frank’s attic, explores identity, loss and memory. **PAGE C1**

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Pay Levels of Football Portal

Representatives of universities and players laid out what those who transfer could expect to receive. Quarterbacks top the scale. **PAGE B8**

OBITUARIES A17, 20

A Daring Playwright

Robert Heide helped to create the Off Off Broadway theater scene, and he wrote and acted in Andy Warhol’s films. He was 91. **PAGE A20**

OPINION A18-19

Bret Stephens

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FOOD D1-8

Relearning How to Eat

Pete Wells, our former restaurant critic, describes his recovery from an out-of-control diet and explains how you can reset your own appetite. **PAGE D1**

